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IN THE DISTRICT COURT OF APPEAL
OF THE STATE OF FLORIDA
SIXTH DISTRICT

GUERDA LORDEUS,

Appellant,

v.

SECURITY FIRST INSURANCE COMPANY,

Appellee.
_____/

CASE NO.: 6D2025-2254
L.T. No.: 2023-CC-001895

MOTION TO DISMISS APPEAL

Appellee, Security First Insurance Company ("Security First"), files this Motion to Dismiss Appeal due to a lack of subject matter jurisdiction, and states:

1. Appellant filed this appeal, lacking a final judgment on its underlying breach of contract lawsuit.

2. Without a final judgment/order, an appellate court lacks jurisdiction to review a trial court order under Florida Rule of Appellate Procedure 9.030(b)(1)(A). *See, e.g.*, *GR Rehab Ctr., Inc. v. GEICO Gen. Ins. Co.*, 331 So. 3d 270, 271 (Fla. 3d DCA 2021) ("Because the challenged order is neither final nor included in Florida Rule of Appellate Procedure 9.130(a)(3)'s schedule of appealable non-

final orders, we lack appellate jurisdiction to review the challenged order."); *Polk Cnty. v. Sofka*, 702 So. 2d 1243, 1245 (Fla. 1997) ("Courts are bound to take notice of the limits of their authority and if want of jurisdiction appears at any stage of the proceedings, original or appellate, the court should notice the defect and enter an appropriate order." (cleaned up)).

3. Appellant filed his breach of contract lawsuit on September 1, 2023 [R. 4-7], which the parties subsequently settled on October 24, 2024. [R. 144, 148].

4. More than eight months later, Appellant moved for attorney's fees (the "Fees Motion") [R. 143–47], which on August 12, 2025, the Court denied in an order (the "Fees Order"). [R. 442–43].

5. While the Court denied the Fees Motion in the Fees Order, the Court has not adjudicated the underlying breach of contract claim. No final judgment or order has been entered by the trial court on Appellant's breach of contract claim or resolution thereof. [R. 143–455].

6. "A final order or judgment is one which evidences on its face that it adjudicates the merits of, and disposes of, the matter before the court and leaves no judicial labor to be done." *Eco Green*

Int'l, LLC v. Acapital, S.R.O., 427 So. 3d 577, 581 (Fla. 3d DCA 2025) (quoting *Cardillo v. Qualsure Ins. Corp.*, 974 So. 2d 1174, 1175–76 (Fla. 4th DCA 2008)); *see also St. Johns River Water Mgmt. Dist. v. Koontz*, 861 So. 2d 1267, 1268 (Fla. 5th DCA 2003) ("A final order is one which does not contemplate further judicial labor."). In other words, "the judicial labor required has been completed," *Sheff v. Sheff*, 435 So. 3d 1100, 1106 (Fla. 4th DCA 2026) (quoting *Fin. Intern. Life Ins. Co. of New Mexico v. Beta Tr. Corp., Ltd.*, 405 So. 2d 306, 307 (Fla. 4th DCA 1981)), and "nothing further remains to be done to terminate the dispute between the parties." *Eco Green*, 427 So. 3d at 581 (quoting *Bloomgarden v. Mandel*, 154 So. 3d 451, 454 (Fla. 3d DCA 2014)).

7. Even when a settlement constitutes a confession of judgment, "a trial court is still required to—and therefore necessarily has jurisdiction to—enter judgment based on the insurer's confession." *Progressive Select Ins. Co. v. Hilchey*, 396 So. 3d 775, 780 (Fla. 2d DCA 2024); *see also Allstate Fire & Cas. Ins. Co. v. Castro*, 351 So. 3d 127, 131 (Fla. 1st DCA 2022) ("A judgment must be regularly entered upon a confession of judgment. The confession itself is not the judgment of the court." (quotation omitted)). Thus,

until final judgment is entered on a settlement, there has not been a final adjudication on the merits.

8. The trial court's order on appeal is the Fees Order denying attorney's fees. [R. 442-43]. Judicial labor still remains for the trial court, as it has not yet entered a judgment on the merits. To have an appealable order here, the trial court's order must "adjudicate with finality" the underlying case. *See GR Rehab*, 331 So. 3d at 271. That has not happened.

9. Indeed, this Court has previously dismissed an appeal in materially the same procedural posture for precisely this defect. *See Ortiz v. Security First Insurance*, No. 6D2025-1254 (Fla. 6th DCA June 30, 2026), *r'hrg denied* (Aug. 6, 2026). [Ex. A]. So also has the Fifth District. *See Aklipse Asset Management, Inc. v. Security First Insurance*, No. 5D2025-0946 (Fla. 5th DCA Oct. 9, 2026). [Ex. B].

10. Granted, the Fees Order is titled a "Final Order" and purports to be "the final order in this case." [R. 442]. However, when evaluating whether the Fees Order is a final, appealable order, the test is one of substance, not form: "In deciding whether an order constitutes a final judgment, we look not to the title. Instead, we review the content and substance to discern whether the order fully

and finally determines the rights of the parties involved in the lawsuit." *Colby III, Inc. v. Centennial Westland Mall Partners, LLC*, 386 So. 3d 1003, 1005 (Fla. 3d DCA 2023); *see also St. Johns River Water Mgmt. Dist. v. Koontz*, 861 So. 2d 1267, 1268 (Fla. 5th DCA 2003) (dismissing appeal for lack of jurisdiction, despite the order on appeal being labeled a "Final Judgment," because that order "was not a final order" as "further judicial labor" would be required). Put another way, irrespective of the title, has the required judicial labor been completed such that nothing further remains to be done? *See Colby III*, 386 So. 3d at 1005; *Koontz*, 861 So. 2d at 1268; *Sheff*, 435 So. 3d at 1106; *Eco Green*, 427 So. 3d at 581.

11. The reason for this rule is simple. Unless and until final adjudication takes place, the order on appeal is an interlocutory order that is subject to revision or modification by the trial court. *See GR Rehab*, 331 So. 3d at 271 ("[U]nless and until the trial court, with finality, adjudicates [the] lawsuit, the trial court may revisit the challenged order"); *Garrido v. SafePoint Ins. Co.*, 347 So. 3d 108, 113 (Fla. 3d DCA 2022) (noting that because a confession of judgment does not constitute a "judgment," the trial court's order striking

attorney's fees was "interlocutory, and may therefore be reconsidered by the trial court").

12. Moreover, the Fees Order merely mentions the "representations of counsel" concerning a settlement, not the Court's prior adjudication of such resolution. [R. 442]. Also, the Fees Order notes "no further judicial labor is required as to taxable costs" but that says nothing about the breach of contract claim. [R. 442]. And even if the trial court believed "that entitlement to attorney's fees was the only issue left in the litigation, and it is resolved by this order," the court below still had not adjudicated the underlying merits claim. [R. 442]. As established above, judicial labor remains here for the trial court: "A judgment must be regularly entered upon a confession of judgment." *E.g.*, *Castro*, 351 So. 3d at 131 (quotation omitted). The trial court has not done so. [R. 442-43]. Thus, the Fees Order is interlocutory, subject to revision or reconsideration, and this Court lacks jurisdiction to consider this non-final order.

13. If this Court dismisses this appeal, this Court should accordingly deny Appellant's motion for appellate attorney's fees, as both this Court and the Fifth District denied such fees. [Exs. C, D].

14. Attorney's fees are collateral to the underlying dispute (unless those fees are an element of the damages of the claim or similar). *Ulrich v. Eaton Vance Distributors*, 764 So. 2d 731, 733 (Fla. 2d DCA 2000). Such collateral attorney's fees are appealable only when there is a final judgment on the merits issue. *See Caribbean Fire and Associates, Inc. v. Coastal Const. Group of South Florida*, 985 So. 2d 1197, 1199 (Fla. 3d DCA 2008) (explaining where there is a final order on the main claim and the right to attorney's fees is collateral, the appellate court has jurisdiction over the final order and along with it the attorney's fees issue).

WHEREFORE, Security First respectfully requests this Court dismiss the appeal and accordingly deny Appellant's motion for appellate attorney's fees.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that the foregoing document is being served on this 14th day of October 2026, via automatic email generated by the Florida Courts E-Filing Portal to:

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EXHIBIT A

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SIXTH DISTRICT

June 30, 2026

SHERLY YADIRA SOTO ORTIZ AND LIONEL DELGADO OQUENDO,
APPELLANTS

V.

SECURITY FIRST INSURANCE COMPANY D/B/A SECURITY FIRST FLORIDA,
APPELLEE.

CASE NO.: 6D2025-1254
L.T. NO.: 2023-CA-005186

BY ORDER OF THE COURT:

The order on appeal strikes Appellants' claim for attorney's fees under section 627.428, Florida Statutes, based on the court's conclusion that the Legislature's repeal of that statute before the date Appellants filed suit barred their fee claim. Because the order was issued after the insurer paid the disputed benefits, Appellants assert that no judicial labor remains and seek to invoke our jurisdiction to review the order as a final order under Florida Rule of Appellate Procedure 9.030(b)(1)(A).

Despite the payment of benefits, the order striking the claim for fees does not adjudicate with finality Appellants' breach of contract suit, which remains pending. *See, e.g., Allstate Fire & Cas. Ins. Co. v. Castro*, 351 So. 3d 127, 131 (Fla. 1st DCA 2022) (explaining that while "[a] confession of judgment is the substitute for verdict," it is not itself the judgment of the court, and thus, [a] judgment must be regularly entered upon a confession of judgment" (citation omitted)); *Progressive Select Ins. Co. v. Hilchey*, 396 So. 3d 775, 780 (Fla. 2d DCA 2024) (stating that despite an insurer's tender of payment, "the trial court is still required to—and therefore necessarily has jurisdiction to—enter judgment based on the insurer's confession" (citation omitted)). The challenged order is therefore interlocutory, and we lack jurisdiction to review it as a final order. *See, e.g., GR Rehab Ctr., Inc. v GEICO Gen. Ins. Co.*, 331 So. 3d 270, 270-71 (Fla. 3d DCA 2021) (dismissing appeal from an order denying motion for attorney fees after insurer confessed judgment by paying PIP benefits during pendency of suit because the order denying fees "did not dismiss, or otherwise adjudicate with finality, GR's PIP lawsuit"); *Garrido v. SafePoint Ins. Co.*, 347 So. 3d 108, 113 (Fla. 3d DCA 2022) (dismissing appeal because order striking request for

attorney's fees and denying request for entry of a final judgment was nonfinal). Nor does the order fall within any of the limited categories of appealable nonfinal orders. *See* Fla. R. App. P. 9.130(a)(3).

Accordingly, we dismiss this appeal without prejudice to Appellants challenging the striking of their fee claim upon rendition of an order finally disposing of the case. *See* Fla. R. App. P. 9.110(l); *GR Rehab Ctr., Inc.*, 331 So. 3d at 271.

DISMISSED.

I hereby certify that the foregoing is a true copy of the original court order.

6D2025-1254 June 30, 2026

Stacey Pectol
Clerk

PANEL: TRAVER, C.J., and STARGEL, and BROWNLEE, JJ.

cc:

CHAD ANDREW BARR
POLK CLERK
JOSEPH W. JACQUOT
MATTHEW DANIEL O'BRIEN

EXHIBIT B

FIFTH DISTRICT COURT OF APPEAL
STATE OF FLORIDA

Case Nos. 5D2025-0946
5D2025-0951
LT Case Nos. 2023-32194-CICI
2023-32195-CICI

AKLIPSE ASSET MANAGEMENT, INC.,

Appellant,

v.

SECURITY FIRST INSURANCE COMPANY, d/b/a SECURITY FIRST FLORIDA,

Appellee.

On appeal from the Circuit Court for Volusia County.
Dennis P. Craig, Judge.

Jeremy D. Bailie, of Weber, Crabb & Wein, P.A., St. Petersburg, for Appellant.

Joseph W. Jacquot and Nicolas J. Cathcart, of Gunster, Yoakley & Stewart, P.A., Jacksonville, for Appellee.

October 9, 2026

PER CURIAM.

DISMISSED. *See* Fla. R. App. P. 9.110*(l)* ("Except as provided in rule 9.020(h), if a notice of appeal is filed before rendition of a final order, the appeal will be subject to dismissal as premature.");

Garrido v. SafePoint Ins. Co., 347 So. 3d 108, 113 (Fla. 3d DCA 2022) ("Because the challenged order is neither final nor included in Florida Rule of Appellate Procedure 9.130(a)(3)'s schedule of appealable non-final orders, we lack appellate jurisdiction to review the challenged order." (citation omitted)); *see also Garrido*, 347 So. 3d at 112 n.1 ("[A]side from a notice of voluntary dismissal under Florida Rule of Civil Procedure 1.420(a), we know of no authority . . . whereby a mere filing by a party, without a subsequent order of the trial court, operates as a final adjudication on the merits of a claim.").

MAKAR, HARRIS, and KILBANE, JJ., concur.

Not final until disposition of any timely and authorized motion under Fla. R. App. P. 9.330 or 9.331.

EXHIBIT C

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SIXTH DISTRICT

June 30, 2026

SHERLY YADIRA SOTO ORTIZ AND LIONEL DELGADO OQUENDO,
APPELLANTS

V.

SECURITY FIRST INSURANCE COMPANY D/B/A SECURITY FIRST FLORIDA,
APPELLEE.

CASE NO.: 6D2025-1254
L.T. NO.: 2023-CA-005186

BY ORDER OF THE COURT:

Appellants' motion for attorney's fees docketed January 8, 2026, is denied.

I hereby certify that the foregoing is a true copy of the original court order.

6D2025-1254 June 30, 2026

Stacey Pectol
Clerk

PANEL: TRAVER, C.J., and STARGEL, and BROWNLEE, JJ.

cc:
CHAD ANDREW BARR
POLK CLERK
JOSEPH W. JACQUOT
MATTHEW DANIEL O'BRIEN

EXHIBIT D

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FIFTH DISTRICT

Aklipse Asset Management, Inc.,	Case Nos.: 5D2025-0946 5D2025-0951
Appellant(s),	L.T. Nos.: 2023-32194-CICI
v.	2023-32195-CICI
Security First Insurance Company d/b/a Security First Florida,	
Appellee(s).	

Date: October 9, 2026

BY ORDER OF THE COURT:

ORDERED that Appellant's "Motion for Appellate Attorney's Fees," filed October 6, 2025, is denied.

I hereby certify that the foregoing is (a true copy of) the original Court order.

5D2025-0946 10/9/2026
SANDRA B. WILLIAMS, CLERK

Panel: Judges Makar, Harris and Kilbane

cc:

Jeremy David Bailie
Nicolas Jon Cathcart
Joseph W. Jacquot
William Franklin Parks
Hewett Griggs Woodward